

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

October 28, 2024

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers and via electronic conference meeting. Present were: MAYOR – Patrick Collins, COUNCIL MEMBERS – Dr. Michelle Aldrich, Bryan Cook, Ken Esquibel, Richard Johnson, Pete Laybourn, Dr. Mark Rinne, Scott Roybal, Tom Segrave and Jeff White. Also present: Kylie Soden, Deputy City Clerk. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda. Upon request by Mr. Laybourn, and pursuant to support received by Dr. Aldrich and Mr. Johnson, item #20(a) was removed from the Consent Agenda. Mr. Roybal moved to approve remaining items, seconded by Dr. Aldrich. Motion carried. Voting “yes” – all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on October 14, 2024. Motion (per Consent Agenda) carried.

ORDINANCE – 2nd READING – Amending the Official Zoning Map of the City of Cheyenne adding the Urban Use Overlay District to land located north of East 21st Street and east of and adjacent to Warren Avenue. Reporting for Public Services Committee, Mr. Roybal advised there was no recommendation from the committee. Mr. Roybal moved to approve on second reading, seconded by Mr. Johnson. Motion carried. Voting “yes” – all members of the governing body with the exception of Mr. Laybourn and Mr. Segrave voting “no”. Public comment was made by: Elizabeth Valverde-Bartlett. Comments were made by the following members of the governing body: Dr. Aldrich, Mr. Johnson, Mr. Laybourn, Dr. Rinne and Mr. Segrave.

ORDINANCE – 2nd READING – Authorizing the Contractor Licensing Board to license and otherwise regulate portable fire extinguisher, hose station equipment and hood system cleaning and maintenance professionals, making conforming amendments, and repealing obsolete provisions of the Municipal Code of the City of Cheyenne, Wyoming. Reporting for Finance Committee, Mr. White moved to approve on second reading, seconded by Dr. Aldrich. Motion carried. Voting “yes” – all members of the governing body with the exception of Mr. Cook and Mr. Johnson voting “no”. Comments were made by the following members of the governing body: Dr. Aldrich, Mr. Cook, Mr. Johnson and Dr. Rinne.

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for VOANR Cheyenne East, City of Cheyenne, Laramie County, Wyoming (located between Maxwell Avenue, Seymour Avenue, East 26th Street and East 25th Street). Motion (per Consent Agenda) carried. (#6431)

[CA] RESOLUTION – Certifying compliance with Wyoming Statute § 15-1-402 for the City-initiated annexation of various tracts of land completely surrounded by current City limits situate in northeast Cheyenne generally located north of Bevans Street, west of College Drive, and south of Dell Range Boulevard. Motion (per Consent Agenda) carried. (#6432)

[CA] RESOLUTION – Certifying compliance with Wyoming Statute § 15-1-402 for the City-initiated annexation of various tracts of land completely surrounded by current City limits situate in northeast Cheyenne generally located east of Ridge Road, west of Whitney Road and along Dell Range Boulevard. Motion (per Consent Agenda) carried. (#6433)

[CA] RESOLUTION – Expressing the support of the Governing Body for acceptance of real property from Stephanie White. Motion (per Consent Agenda) carried. (#6434)

[CA] RESOLUTION – Expressing the determination by the Governing Body of the City of Cheyenne for the repeal of enacting Resolutions and dissolution of specific City Committees, Commissions and Councils due to inactivity. Motion (per Consent Agenda) carried. (#6435)

[CA] RESOLUTION – Acknowledging receipt of the Rotary Park Master Plan Report – referred to Public Services Committee. (Sponsor – Dr. Rinne)

[CA] RESOLUTION – Expressing the intent of the Governing Body, repealing and replacing Resolution No. 6127 governing the creation and administration of the Innovation and Entrepreneur Advisory Council – referred to Public Services Committee. (Sponsor – Mr. Johnson)

[CA] RESOLUTION – Acknowledging receipt of a petition by the City of Cheyenne Planning Commission to add the UU Urban Use Overlay to an area zoned MUR Mixed-Use Residential Emphasis with frontage on the east side of Warren Avenue between 21st and 22nd Streets, and directing staff to initiate a zoning map amendment pursuant to the petition – referred to Public Services Committee. (Sponsor – Mr. Roybal)

[CA] RESOLUTION – Directing City staff to research and develop a plan to initiate the process to pave the road on Birch Place between Charles Street and Cheyenne Street and install curb, gutter and sidewalks – referred to Public Services Committee. (Sponsors – Dr. Aldrich, Mr. Esquibel and Mr. Johnson)

[CA] RESOLUTION – Directing City staff to research and develop a plan to initiate the process to pave the road on Ridge Road between Hillcrest Road and Stevens Drive and install curb, gutter and sidewalks – referred to Public Services Committee. (Sponsors – Dr. Aldrich, Mr. Esquibel and Mr. Johnson)

[CA] Agreement between the City of Cheyenne, Transit Division, and the Wyoming Department of Health, Aging Division to provide transportation support services to persons 60 years or older under the Title III-B Program Grant for FY 2025 (Title III-B Division of Aging Grant). Motion (per Consent Agenda) carried in an amount not to exceed \$62,620.00. (#8070)

Urban Renewal Development Agreement to award Tax Increment Financing (TIF) for a development in the West Downtown Plan and Project urban renewal area. Mr. Roybal moved to approve, seconded by Dr. Rinne. Mr. Roybal moved to amend by substitute dated October 25, 2024, seconded by Dr. Rinne. Motion to amend by substitute carried. Voting “yes” – all members of the governing body. Main motion as amended by substitute carried. Voting “yes” – all members of the governing body. Public comment was made by: Mark Christensen, AVI, P.C., Nathan Stencil, Stencil Group and Brandon Swain. Comments were made by the following members of the governing body: Dr. Aldrich, Mayor Collins, Mr. Laybourn, Dr. Rinne, Mr. Roybal, Mr. Segrave and Mr. White. (#8071)

Urban Renewal Development Agreement to award Tax Increment Financing (TIF) for a development in the Jolly Rogers Plan and Project urban renewal area. Mr. Roybal moved to approve, seconded by Mr. Segrave. Mr. Roybal moved to amend by substitute dated October 25, 2024, seconded by Dr. Rinne. Motion to amend by substitute carried. Voting “yes” – all members of the governing body. Main motion as amended by substitute carried. Voting “yes” – all members of the governing body. Motion carried. Voting “yes” – all members of the governing body. Public comment was made by: Mark Christensen, AVI, P.C. and Nathan Stencil, Stencil Group. Comments were made by the following members of the governing body: Dr. Aldrich, Mayor Collins and Mr. Johnson. (#8072)

[CA] Professional Services Agreement between the City of Cheyenne, Metropolitan Planning Organization (MPO), and Kimley-Horn and Associates, Inc., for an update of the MPO Long-Range Metropolitan Transportation Plan (MTP) (MPO Fund) – referred to Finance Committee.

[CA] Grant of Utility Easement between the City of Cheyenne and the Cheyenne Board of Public Utilities on city owned property situated in the S½ of Section 35, Township 14 North, Range 66 West of the 6th P.M., Laramie County – referred to Public Services Committee.

[CA] Memorandum of Understanding between the City of Cheyenne and the National Forest Foundation to establish roles and responsibilities as a subrecipient of the US Endowment for Forestry and Communities Grant – referred to Finance Committee.

[CA] Memorandum of Understanding between the City of Cheyenne and the World Resources Institute to establish roles and responsibilities as a subrecipient of the US Endowment for Forestry and Communities Grant – referred to Finance Committee.

[CA] Agreement between the City of Cheyenne and Safe Harbor to provide a safe and secure environment to families who have been affected by abuse (General Fund) – referred to Finance Committee.

[CA] Agreement between the City of Cheyenne and The Cheyenne Housing Authority to provide supportive Senior Services (General Fund) – referred to Finance Committee.

[CA] Agreement between the City of Cheyenne and Volunteers of America Northern Rockies, Alcohol Receiving Center, to provide alcohol and drug detoxification services (General Fund) – referred to Finance Committee.

[CA] Telecommunications Right-of-Way License and Use Agreement between the City of Cheyenne and Viaero Fiber Networks, LLC for the installation and operation of facilities (Revenue to City) – referred to Finance Committee.

[CA] Agreement for the purchase, sale and exchange of lands between the City of Cheyenne and Black Hills Energy for exchange of real property, 0.77 acres, from the City to Black Hills Energy and 0.85 acres, from Black Hills Energy to the City, both having appraised values of \$275,000.00 and \$445,000.00, respectively (properties generally located at 108 W. 18th Street and the 1300 block of W. 24th Street) (2017 Specific Purpose Option Tax) – referred to Finance Committee.

[CA] Contract Modification #2 to Contract #7480 between the City of Cheyenne and Veolia ES Technical Solutions for Hazardous Waste Disposal Services through January 31, 2026 (Solid Waste Fund) – referred to Finance Committee.

[CA] Contract Modification #2 to Contract #7462 between the City of Cheyenne and Onsite Electronics Recycling, LLC, d/b/a I.T. Refresh for Electronics Recycling Services through January 31, 2026 (Solid Waste Fund) – referred to Finance Committee.

Consideration of Bid #S-6-25 for an Agreement the City of Cheyenne and Pine Bluffs Gravel & Excavating, Inc. for the Childs Draw South Tributary Drainage Enchantments Project (General Fund, General Fund Reserves). Mr. White moved to approve in an amount not to exceed \$465,104.75, seconded by Mr. Johnson. Motion carried. Voting “yes” – all members of the governing body with the exception of Dr. Rinne voting “no”. Comment was made by the following member of the governing body: Mr. Laybourn. (#8073)

[CA] Consideration of Bid #E-5-25 for mobile clam shell style laptops and docking stations for the IT Division (2019-2022 & 2023-2026 Optional 1% Sales Tax Fund) – referred to Finance Committee.

Appointment of Lonnie Olson to the Planning Commission. Mr. Roybal moved to approve, seconded by Dr. Aldrich. Motion carried. Voting “yes” – all members of the governing body with the exception of Mayor Collins who did not vote (mayoral appointment).

No comments were made on the Voucher Report as presented.

No comments were made on the Revenue Report as presented.

An announcement was made that due to the Veterans Day Holiday on Monday, November 11, 2024, the regularly scheduled City Council meeting will instead be held on Tuesday, November 12, 2024, at 6:00 p.m. in City Council Chambers, 2101 O’Neil Avenue, Cheyenne, WY, and via electronic conference meeting.

An announcement was made of a Public Hearing to be held November 12, 2024 at 6:00 p.m. in City Council Chambers, 2101 O’Neil Avenue, Cheyenne, WY, and via electronic conference meeting, to determine whether compliance of annexation conditions required by Wyoming Statute § 15-1-402 exist for about 640 acres of land situate in portions of Sections 4 and 5, T13N, R67W, 6th P.M., Laramie County, Wyoming (also known as North Range Business Park;

located northwest of the I-80 and Roundtop Road Interchange).

Announcement was made of a Public Hearing to be held November 12, 2024 at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, WY, and via electronic conference meeting, to determine whether compliance of annexation conditions required by Wyoming Statute § 15-1-402 exist for the City-initiated annexation of 38 parcels of land totaling 26.67 acres comprised of various tracts of land situate in northeast Cheyenne generally located north of Bevans Street, west of College Drive and south of Dell Range Boulevard.

Announcement was made of a Public Hearing to be held November 12, 2024 at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, WY, and via electronic conference meeting, to determine whether compliance of annexation conditions required by Wyoming Statute § 15-1-402 exist for the City-initiated annexation of 26 parcels of land totaling 38.37 acres comprised of various tracts of land situate in northeast Cheyenne generally located east of Ridge Road, west of Whitney Road and along Dell Range Boulevard.

Announcement was made of a Public Hearing to be held November 12, 2024 at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, WY, and via electronic conference meeting, for disposal of real property and land exchange between the City of Cheyenne and Black Hills Energy (properties generally located at 108 W. 18th Street and the 1300 block of W. 24th Street).

Public comment was made by the following under Other Business: Brandon Swain.

The following member of the governing body commented under Other Business: Mr. Johnson.

There being no further business to come before the governing body, the meeting was officially adjourned at 7:25 p.m.

Submitted by,

Kylie Soden,
Deputy City Clerk

This notice is available in alternative, accessible formats upon request.

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